

Chet Singh And Others vs State Of Punjab And Another on 19 January, 2010

Author: T.P.S.Mann

Bench: T.P.S.Mann

Criminal Appeal No. 1234-SB of 2002

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IN THE HIGH COURT OF PUNJAB AND HARYANA AT
CHANDIGARH

Criminal Appeal No. 1234-SB of 2002
DATE OF DECISION: January 19, 2010

Chet Singh and others

.....APPELLANTS

VERSUS

State of Punjab and another

.....RESPONDENTS

CORAM: HON'BLE MR JUSTICE T.P.S.MANN

PRESENT: Mr L.S.Sidhu, Advocate
for the appellants.

Mr P.S.Sidhu, Additional Advocate General, Punjab
for State-respondent No.1.

Mr D.S.Sidhu, Advocate
for complainant-respondent No.2.

T.P.S .MANN, J. (Oral):

The appellants were tried by Additional Sessions Judge, Ferozepur for offences under Sections 307, 323/34 IPC for causing injuries to Dalip Singh and Pritam Singh. Vide judgment and order dated 24.7.2002, the trial Court convicted Chet Singh-appellant under Section 307 IPC and sentenced him to undergo rigorous imprisonment for three years and to pay a fine of Rs.1,000/-. In default of payment of fine, he was directed to undergo further rigorous imprisonment for six months. The other appellants were held vicariously liable under Section 307/34 IPC and sentenced to undergo rigorous imprisonment for two years and to pay a fine of Rs.500/- each. In default of payment of fine, the defaulting accused was to undergo further rigorous imprisonment for three months. All the appellants were also convicted under Section 323 IPC and sentenced to undergo rigorous imprisonment for six months each. Substantive sentences were ordered to run concurrently.

According to the prosecution, Dalip Singh complainant and his brother Pritam Singh were agriculturists by profession and having joint cultivation. The land of Chet Singh accused adjoined their land. The complainant had carved out a Khal for the purpose of irrigating his fields from the main canal. The said Khal passed through rectangle No.30 Killa Nos. 6 and 7. About 10/15 days earlier to the present occurrence, Chet Singh accused had demolished the Khal. On 2.6.1999 at about 11.00 AM, the complainant and his brother Pritam Singh were re-laying the demolished Khal. In the meantime, all the four accused duly armed reached there. Chet Singh raised lalkara to teach a lesson to the complainant and his brother for relaying the Khal. Upon this, Harmesh Singh gave a butt blow of his gun, hitting Pritam Singh near his right ear. Chet Singh gave a bala blow on the head of Pritam Singh. On receiving injuries, Pritam Singh fell down. While he was lying on the ground, he was given a gandasa blow from its reverse side by Gurmej Singh, hitting him on his nose. When the complainant tried to rescue his brother, Desa Singh gave a gandasa blow from its reverse side hitting him on his head. Chet Singh put a saffa around the neck of the complainant, as a result whereof, the complainant fell down and received scratches around his neck. Desa Singh gave gandasa blow from its blunt side on the left palm of the complainant. Chet Singh gave a kick blow in the abdomen of the complainant. On receiving the injuries, Pritam Singh became unconscious. The occurrence was also witnessed by Kundan Singh son of the complainant, who was at that time standing at a little distance from the place of the occurrence. When an alarm was raised, all the accused fled away from the spot while carrying their respective weapons.

The injured were first taken to Civil Hospital, Mamdot, from where they were further referred to Civil Hospital, Ferozepur. Dr Mahesh Chander Markan, Medical Officer, Civil Hospital, Ferozepur conducted medico-legal examination on the person of Pritam Singh on 2.6.1999 and found the following injuries:

1. Patient complained of bleeding from the right ear. Fresh bleeding was present. ENT specialist opinion was advised.
2. Patient complained of bleeding from the nose. Fresh blood was present in the nostrils. Opinion of ENT specialist was advised.

3. There was history of vomiting and headache more in the right side of head. Patient complained of being hit by blunt wooden weapon on the right side of the head, just above the right ear. Tenderness was present. X-ray was advised.

Injury No.3 was kept under observation and was declared grievous later-on on the basis of x-ray report. This injury was subsequently declared as dangerous to life. The said doctor also examined Dalip Singh injured on the same day and found the following injuries on his person:

1. Lacerated wound 4.5 cm x 0.5 cm in the occipital region of the head. More towards the right side 12 cm from the right ear pinna. Injury was bone deep. Fresh bleeding was present. X-ray was advised.
2. Two abrasions of the size 2 x 1 cm and 1 x 1 cm. .5 cm apart 2 cm behind the angle of left mandible. Fresh bleeding was present.
3. Lacerated wound 2 x 1 cm on the palmer aspect of the left hand near the base of middle finger. Fresh blood was present.
4. Complained of pain in the left side of abdomen. Advised opinion of the surgical specialist.

Injury Nos. 2 and 3 were declared simple in nature, whereas injury Nos. 1 and 4 were kept under observation. Subsequent x-ray conducted of Dalip Singh in respect of injury Nos. 1 and 4 revealed that there was no bony injury. As such, these injuries were also declared simple in nature.

On the basis of statement made by Dalip Singh complainant, formal FIR No.71 dated 4.6.1999 was registered against the appellants at Police Station, Mamdot. The investigation was conducted by ASI Naranjan Singh, who went to the spot of the occurrence and prepared rough site plan. He obtained various opinions from the doctors and arrested the accused. After completion of the investigation, the appellants were challaned for offences under Sections 307, 323, 34 IPC. The case was committed to the Court of Sessions and vide order dated 4.1.2000, learned Additional Sessions Judge framed the charge against the appellants for the aforementioned offences. The appellants pleaded not guilty and claimed trial.

In support of its case, the prosecution examined PW-1 Dr Mahesh Chander Markan, PW-2 Dr Jajbir Singh Sandhu, PW-3 H.C Puran Chand, PW-4 Constable Gurmit Singh, PW-5 Dalip Singh, PW-6 Pritam Singh, PW-7 ASI Ved Parkash, PW-8 MHC Joginder Singh and PW-9 ASI Naranjan Singh.

When examined under Section 313 Cr.P.C, the appellants pleaded their false implication. They stated that Dalip Singh and Pritam Singh wanted to carve out the Khal through their land and when they prevented them from doing so, some unknown persons caused injuries to them. In defence, they examined DW-1 Swaran Singh, Patwari, DW-2 Surinder Kaur, Stenotypist and DW-3 Amar Nath Sharma, Advocate.

The trial Court believed the prosecution version and convicted and sentenced the appellants, as mentioned above. Hence, they are now before this Court by way of an appeal.

It may be mentioned here that soon after the registration of the criminal case against the appellants, an understanding was arrived at between the parties. Affidavits dated 23.6.1999 were submitted by Dalip Singh complainant and Pritam Singh, wherein they stated that the injuries on their persons were inflicted by unknown persons, who had come with muffled faces, whereas the present appellants were innocent as they had not committed the offences as alleged. After keeping in view the fact that the offence under Section 307 IPC was not compoundable and the affidavits had not been handed over to the police, learned Additional Sessions Judge, Ferozepur vide order dated 2.7.1999 declined to grant the concession of anticipatory bail to the appellants. Despite the same, the appellants filed another application before the lower Court for the grant of anticipatory bail, which was accepted on 9.8.1999, in view of the fact that no evidence had been collected by the Investigating Agency to attract the offence under Section 307 IPC. The fact remained that soon after the registration of the FIR, a compromise was effected between the parties.

During the pendency of the present appeal, the appellants also filed an application under Section 482 Cr.P.C with the plea that the parties have entered into a settlement and in that regard, they relied upon compromise deed which stood attached with the said application as Annexure P-2. It was mentioned in the aforementioned compromise deed that both the parties were residents of one village and belonged to one caste, besides being related to each other. The respectables of the village and the common relations had got effected the compromise between the parties. In view of the aforementioned affidavits, this Court vide order dated 22.10.2008 ordered for impleading complainant Dalip Singh as respondent No.2 and notice was, accordingly, issued to him. Pursuant thereto Dalip Singh brought on record his affidavit dated 5.12.2008, wherein he once again supported the fact of compromise having been arrived at between the parties and all the grievances stood removed. Similar affidavit was also filed by Budh Parkash son of the other injured Pritam Singh, as said Pritam Singh had died during the pendency of the appeal. Mr D.S.Sidhu, who represents complainant-respondent No.2 Dalip Singh also confirms the fact that the compromise stands effected between the parties and the complainant party has no ill-will or grudge left against the appellants.

The main question which needs consideration in the present appeal is as to whether an offence under Section 307 IPC can be said to have been made out against the appellants or not. It was injury No.3 on the right side of the head of Pritam Singh, which was declared grievous in nature vide report Ex.P-15 given by PW-2 Dr Jajbir Singh Sandhu as there was a fracture of parietal bone of skull. Later-on i.e on 15.6.1999, when Pritam Singh injured had already been discharged from the hospital, the prosecution obtained an opinion Ex.P-17 from PW-1 Dr Mahesh Chander Markan, declaring the said injury on the person of Pritam Singh, as dangerous to life. This opinion was given on the basis of X-ray report Ex.P-18 and not on the basis of actual examination of the injured at that point of time. Though there was a fracture of the parietal bone underneath injury No.3, which was attributed to Chet Singh appellant, yet that by itself was not sufficient to hold that injury in question was dangerous to life. Such an injury could only be brought within the ambit of Section 307 IPC, if it was sufficient in the ordinary course of nature to cause death. No such opinion had been solicited by

the prosecution either during the course of the investigation or at the time of the trial from PW-1 Dr Mahesh Chander Markan. As such, the opinion which remains on the file regarding injury No.3 is that it was dangerous to life. That would not make out the commission of offence under Section 307 IPC. It would at the most bring the offence under Section 325 IPC, as there was a fracture of the parietal bone underneath injury No.3.

In *Tej Ram vs The State of Punjab*, 1978 Chandigarh Law Reporter (Pb. & Haryana) 76, a similar situation arose where the injury in question had ruptured the lung of the victim and it was described by the examining doctor as dangerous to life, if not treated. The Court held that this was certainly not the type of the injury, as would attract the provisions of Section 307 IPC, which envisages an injury sufficient in the ordinary course of nature to cause death and the injury described by the doctor was a lesser injury, which would fall within clause Eighthly of Section 320 IPC and, therefore, punishable under Section 326 thereof. While holding so the Court held as under:

"The only contention raised on behalf of the appellant is that the offence of which he could be convicted was one under Section 326 of the Indian Penal Code and not under Section 307 thereof and that consequently, the sentence awarded to him is excessive. The injury in question had ruptured the lung of the victim and was described by the examining doctor as "dangerous to life"

and if not treated i.e. to say that but for timely and medical aid the injured was likely to die. This is certainly not the type of the injury as would attract the provisions of section 307 of the Code which envisages an injury sufficient in the ordinary course of nature to cause death. The injury described by the doctor was a lesser injury which, in my opinion, would fall within clause Eighthly of Section 300 (sic) of the Indian Penal Code and be punishable under section 326 thereof. Accordingly, the conviction recorded against the appellant is converted into one under the section last mentioned and in consequence the sentence imposed on him is reduced from rigorous imprisonment for four years to that already suffered which works out to rigorous imprisonment for about 18 months. To this extent alone is the appeal accepted."

The judgment in *Tej Ram's* case (supra) is fully applicable to the present case. There is no opinion given by PW-1 Dr Mahesh Chander Markan that injury No.3 on the person of Pritam Singh injured was sufficient in the ordinary course of nature to cause death. His opinion remains only up to the injury being dangerous to life. As such, this injury can not be considered to fall within the ambit of Section 307 IPC. As the same had been caused by a blunt weapon and it had resulted into a fracture, the injury would, at the most, fall under Section 325 IPC.

Resultantly, it is held that Chet Singh appellant shall be guilty under Section 325 IPC for causing injury No.3 on the person of Pritam Singh and not under Section 307 IPC. Similarly, the remaining three appellants shall be liable under Section 325/34 IPC, instead of Section 307/34 IPC. Apart from the same, all the appellants have been rightly convicted under Section 323 IPC for causing other simple injuries to aforementioned Pritam Singh and Dalip Singh.

The question of compromise having been effected between the parties assumes significance now. The offence under Section 325 IPC is legally compoundable, though with the permission of the Court, as required by Section 320 (2) Cr.P.C, whereas for compounding offence under Section 323 IPC, no such permission is required as per Section 320 (1) Cr.P.C. Such a benefit can be extended to the accused not only during the trial of the case, but also at the time of hearing of the appeal or revision. Under Section 320 (8) Cr.P.C, the compounding/composition of the offence would have the effect of acquittal of the accused with whom the offence stood compounded. None of the offences, for which the appellants now stand convicted, is the one which can not be legally compounded. There is sufficient material on the file to establish that a valid compromise stands arrived at between the parties. Accordingly, this benefit can be extended to the appellants.

In view of the above, conviction of Chet Singh appellant is altered from Section 307 IPC to Section 325 IPC, whereas that of the remaining appellants from Section 307/34 IPC to Section 325/34 IPC. The conviction of all the appellants under Section 323 IPC is maintained. However, in view of the compromise arrived at between the parties, the appeal is accepted and the appellants are acquitted of the charges against them.

January 19, 2010
Pds

(T.P.S.MANN)
JUDGE

Whether to be referred to Reporter: Yes/No